BEFORE THE NATIONAL COMPANY LAW TRIBUNAL

COURT NO. IV, NEW DELHI

CA (CAA)-64 (ND)/2021

IN THE MATTER OF SECTIONS 230-232 OF THE COMPANIES ACT, 2013

Sections 230-232 and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements, and Arrangements) Rules, 2016.

In the matter of Scheme of Amalgamation

OF

ELGIN ROAD SERVICES PRIVATE LIMITED

(Transferor Company No.1/Applicant Company-1)

WITH

W.H TARGETT INDIA LIMITED

(Transferee Company /Applicant Company-2)

CORAM:

Dr. DEEPTI MUKESH

HON'BLE MEMBER (Judicial)

SMT. SUMITA PURKAYASTHA

HON'BLE MEMBER (Technical)

MEMO OF PARTIES

ELGIN ROAD SERVICES PRIVATE LIMITED

Having its registered office at:

145, Sunder Nagar, Lodhi Road

New Delhi 110003

(Transferor Company No.1/Applicant Company-1)

WITH

W.H TARGETT INDIA LIMITED

Having its registered office at:

145, Sunder Nagar, Lodhi Road

New Delhi 110003

(Transferee Company /Applicant Company-2)

Order Delivered on :03.09.2021

For the Petitioner : Komal Ahuja, Adv

ORDER

Per-Smt. Sumita Purkayastha, Member (T)

1. This is joint application filed by the applicant companies herein, Elgin Road Services Private Limited (Transferor Company No.1 /Applicant Company-1), and W.H TARGETT INIDA LIMITED (Transferee Company /Applicant Company-2) under section 230-232 of Companies Act, 2013, and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 in relation to the Scheme of Arrangement by way of Amalgamation (hereinafter referred to as the "SCHEME") proposed between the applicants.

2. Affidavit in support of the above application sworn by Mr. Prafull Dwarkadas Goradia, the Director of the Transferor Company /Applicant Company No.1 and Mrs. Nayana Goradia the Director of the Transferee Company /Applicant Company No.2. It is also represented that the registered office of the applicant companies are under the domain of Registrar of Companies, NCT of New Delhi & Haryana and within the territorial jurisdiction of this Tribunal.

3. The Transferor Company No.1 /Applicant Company No.1 is a private limited company incorporated on 19.02.1988 under the provisions of Companies Act, 1956 bearing CIN U15491DL1988PTC102533 with registrar of Companies, NCT of Delhi and Haryana under the name and style of "M/S

Elgin Road Services Private Limited" and having its registered office at 145 Sunder Nagar, Lodhi Road New Delhi 110003. The Authorized Share Capital of the Transferor Company is Rs.6,000,000/- and the Paid-up Share Capital is Rs. 55,00,000/-

4. The Transferee Company/ Applicant Company No.2 is a public company incorporated on 24.11.1981 under the provisions of Companies Act, 1956 bearing CIN U74899DL1981PLC061171 with registrar of Companies, NCT of Delhi and Haryana under the name and style of "*W.H. Targett* Limited" and having its registered office at 145 Sunder Nagar, Lodhi Road New Delhi 110003. The Authorized Share Capital of the Transferor Company is Rs.2,95,00,000/- and the Paid-up Share Capital is Rs. 2,63,17,980/-.

5. The Applicant Companies have filed their respective Memoranda and Articles of Association inter alia delineating their object clauses, as well as their last Audited Annual Accounts for the financial 31.03.2020.

6. The Applicant companies vide their respective meetings of the Board of Directors held on 27.01.2021 and 10.02.2021 have unanimously approved the proposed Scheme of Amalgamation as contemplated above. Copies of said resolutions passed in the said board meetings have been placed on record.

7. The applicants have furnished the details of the consents given on affidavit the Shareholders, in the Scheme of the applicant companies as on date which are as follows:

S.No.	Name of the Company	No. of Share Holders	**CONSENT OBTAINED**	No. of Secured Creditors	No. of Unsecured Creditors	**CONSENT OBTAINED**
1	***ELGIN ROAD SERVICES PRIVATE LIMITED***	4	ALL	NIL	NIL	NIL
2	***W.H. TARGETT LIMITED***	17	ALL	NIL	NIL	NIL

The applicant companies have therefore prayed for dispensation of all the meetings

8. The appointed date as specified in the Scheme is 01.04.2020 subject to the directions of this Tribunal.

9. Taking into consideration the submissions and the documents filed therewith, we propose to issue the following directions with respect to convening/holding or dispensing with the meetings of the Shareholders, Secured and Unsecured Creditors as well as issue of notices including by way of paper publication as follows:

A. <u>In relation to the Transferor CompanyNo.1 :</u>

a) With respect to Equity shareholders: In view of consent affidavits, from 4 equity shareholders having 100% voting share been filed, convening the meeting of shareholders/members is dispensed with.

b) **With respect to Secured Creditors:** There are no Secured Creditors, therefore the necessity of convening a meeting does not arise.

c) **With respect to Unsecured Creditors:** There are no Un-Secured Creditors, therefore the necessity of convening a meeting does not arise.

B. <u>In relation to Transferee Company:</u>

a) **With respect to Equity shareholders:** In view of consent affidavits, from 17 equity shareholders having 100% voting share been filed, convening the meeting of shareholders/members is dispensed with.

b) **With respect to Secured Creditors:** There are no Secured Creditors, therefore the necessity of convening a meeting does not arise.

c) **With respect to Unsecured Creditors:** There no Un- Secured Creditors, therefore the necessity of convening a meeting does not arise.

10. The application stands allowed on the aforesaid term and disposed off.

Sd/-

SUMITA PURKAYASTHA
MEMBER (T)

Sd/-

Dr. DEEPTI MUKESH
MEMBER (J)